

COMMISSION IMPLEMENTING REGULATION (EU) 2015/227

CELEX id	32015R0227
Document type	Regulation
Policy domain	Education and communications
Year	2015
Legal actor type	Public agency
Applicable role	Financial intermediary
Language	en

COMMISSION IMPLEMENTING REGULATION (EU) 2015/227

of 9 January 2015

amending Implementing Regulation (EU) No 680/2014 laying down implementing technical standards with regard to supervisory reporting of institutions according to Regulation (EU) No 575/2013 of the European Parliament and of the Council

(Text with EEA relevance)

THE EUROPEAN COMMISSION,

Having regard to the Treaty on the Functioning of the European Union,

Having regard to Regulation (EU) No 575/2013 of the European Parliament and of the Council of 26 June 2013 on prudential requirements for credit institutions and investment firms and amending Regulation (EU) No 648/2012 (1), and in particular the fourth subparagraph of Article 99(5), the fourth subparagraph of Article 99(6), the third subparagraph of Article 101(4) and the third subparagraph of Article 394(4) thereof,

Whereas:

(1)

Commission Implementing Regulation (EU) No 680/2014 (2) lays down the requirements according to which institutions should report information relevant to their compliance with Regulation (EU) No 575/2013.

(2)

The reporting of consistent, accurate and comparable information on credit loss provisions and forbearance measures pursuant to Implementing Regulation (EU) No 680/2014 is an essential element for obtaining comprehensive views on risk profiles of institutions and the systemic risk they pose to the financial sector. In the context of uncertainty regarding asset quality throughout the Union and in order for the European Banking Authority (EBA) and competent authorities to obtain a comprehensive view of the risk profile of the activities of the institutions as well as for the European Systemic Risk Board (ESRB) to perform its macro-prudential oversight tasks, institutions should be required to report information on their forbearance activities and non-performing exposures.

(3)

Forbearance activities and non-performing exposures are covered by existing accounting requirements to disclose information on loans and debt securities exposures and their credit quality pursuant to Regulation (EC) No 1606/2002 of the European Parliament and of the Council (3) and to Council Directive 86/635/EEC (4). However, there are neither comprehensive, harmonised definitions of the concepts of forbearance and of non-performing exposures, nor specific and detailed supervisory reporting requirements.

(4)

Technical standards should therefore establish specific definitions of forbearance and of non-performing exposures, and reporting templates to allow the EBA, competent authorities and the ESRB, to rely on asset quality concepts that are even more harmonised than the currently existing concepts. This would make the reported data even more comparable by minimising differences stemming from the varying concepts of forbearance and the differences in implementation of the default and impairment definitions across the Union. To this extent, the definition of non-performing exposure should act as a harmonised asset quality index, a classification tool, and not as a substitute for the existing definitions of default and impairment.

(5)

To provide institutions and competent authorities with adequate time to implement the requirements of this Regulation regarding forbearance activities and non-performing exposures in a manner that will produce high quality data, a deferred remittance date should apply in relation to those reporting requirements.

(6)

In order to ensure a correct application of the requirements laid down in Implementing Regulation (EU) No 680/2014, further precision should be provided to the templates, instructions and definitions used for the purposes of supervisory reporting of institutions. Therefore, for reasons of legal clarity, it is appropriate to replace several templates of Annexes I, III and IV and to amend some of the instructions laid down in Annexes II, V, VII and IX. This Regulation is based on draft implementing technical standards submitted by the EBA to the Commission.

(7)

The EBA has conducted open public consultations on the draft implementing technical standards regarding forbearance activities and non-performing exposures on which this Regulation is partially based, analysed the potential related costs and benefits and requested the opinion of the Banking Stakeholder Group established in accordance with Article 37 of Regulation (EU) No 1093/2010 of the European Parliament and of the Council (5).

(8)

Given that the other necessary amendments to Implementing Regulation (EU) No 680/2014 do not involve significant changes in substantive terms, in accordance with the second subparagraph of Article 15(1) of Regulation (EU) No 1093/2010, the EBA has not conducted any other open public consultation, considering that it would be disproportionate in relation to the scope and impact of the draft implementing technical standards concerned.

(9)

Implementing Regulation (EU) No 680/2014 should therefore be amended accordingly.

(10)

In order to ensure that institutions submit as soon as possible the supervisory data to competent authorities to allow them to have a comprehensive picture of the institutions, this Regulation should enter into force on the day following that of its publication in the Official Journal of the European Union,

HAS ADOPTED THIS REGULATION:

Article 1

Implementing Regulation (EU) No 680/2014 is amended as follows:

(1)

in Article 5(b), point (1) is replaced by the following:

‘(1)

the information on all securitisation exposures as specified in template 14 of Annex I, according to the instructions in point 3.9 of Part II of Annex II.

Institutions shall be exempted from submitting those securitisation details where they are part of a group in the same country in which they are subject to own funds requirements;';

(2)

in Article 18, the following paragraph is added:

'Without prejudice to Article 2, the first remittance date for templates 18 and 19 in Annex III shall be 31 December 2014. Rows and columns of templates 6, 9.1, 20.4, 20.5, and 20.7 in Annex III referring to forborne exposures and to non-performing exposures shall be completed for the remittance date 31 December 2014';

(3)

Annexes I to V are replaced by the text as set out in Annex I to this Regulation;

(4)

Annex VII is replaced by the text as set out in Annex II to this Regulation;

(5)

Annex IX is replaced by the text as set out in Annex III to this Regulation.

Article 2

This Regulation shall enter into force on the day following that of its publication in the Official Journal of the European Union.

This Regulation shall be binding in its entirety and directly applicable in all Member States.

Done at Brussels, 9 January 2015.